

24CHCV00702 24CHCV00702

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Case Number: 24CHCV00702 Hearing Date: July 8, 2026 Dept: F47

Dept. F47

Date: 7/8/26

TRIAL DATE: 6/1/27

Case #24CHCV00702

MOTION FOR LEAVE TO FILE A SECOND AMENDED COMPLAINT

Motion filed on 5/21/26.

MOVING PARTY: Plaintiff Lev Katsman

RESPONDING PARTY: Defendant Mahle Filter Systems North
America Inc. dba Mahle Letrika USA

NOTICE: ok

RELIEF REQUESTED: An order granting Plaintiff
leave to file a Second Amended Complaint.

RULING: The motion is denied without
prejudice.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an incident that occurred on
12/8/23 at Defendant Clubcorp Porter Valley Country Club, Inc. (The Club) when

Plaintiff Lev Katsman (Plaintiff) was playing a round of golf. (See FAC ¶¶10, 18). Plaintiff alleges that while driving the E-Z-Go Elite golf cart (the golf cart) assigned and provided to him by the Club, “the front right wheel of the golf cart suddenly and without any warning locked up, which then caused the rear-end of the golf cart to swerve left in a clockwise direction, which then caused plaintiff to be ejected from the driver’s side of the golf cart” resulting in Plaintiff suffering serious and permanent injuries. (emphasis added) (FAC ¶18).

On 3/5/24, Plaintiff filed this action against The Club and Does 1-50 alleging one cause of action for negligence. Plaintiff’s original complaint made the same allegations regarding the right front wheel locking up and causing the incident. (See Complaint ¶¶14, 17-19). On 4/18/24, The Club answered the complaint and filed a cross-complaint against Plaintiff and Roes 1-25. On 10/16/24, The Club filed a First Amended Cross-Complaint against Plaintiff, Textron Specialized Vehicles, Inc. and Textron E-Z-GO, LLC (collectively, Textron) and Roes 1-50. On 12/13/24, Textron answered The Club’s First Amended Cross-Complaint. On 12/13/24, The Club filed a Roe amendment naming Mahle Filter Systems North America, Inc. dba Mahle Letrika USA (Mahle) as Roe 1. On 1/13/25, Textron filed a cross-complaint against Mahle. On 3/7/25, Mahle answered Textron’s cross-complaint.

On 3/7/25, The Club dismissed Mahle as Roe 1 from its First Amended Cross-Complaint as to the 1st – 4th causes of action and filed a Roe amendment naming Mahle as Roe 13 as to the 5th – 8th causes of action.

On 3/12/25, Plaintiff answered The Club’s First Amended Cross-Complaint. On 4/4/25, Mahle answered The Club’s First Amended Cross-Complaint. On 6/9/25, Plaintiff’s motion for leave to file a First Amended Complaint was granted and on 6/10/25, Plaintiff filed his operative First Amended Complaint which alleges causes of action for: (1) Negligence against The Club and Does 1-25, (2) Products Liability against Textron and Does 26-50, (3) Strict Products Liability against Textron and Does 26-50, (4) Breach of Express and Implied Warranties against Textron and Does 26-50, and (5) Breach of Warranties of Fitness for a Particular Purpose against Textron and Does 26-50. On 6/11/25, Plaintiff filed a Doe amendment naming Mahle as Doe 1 in his First Amended Complaint.

On 7/14/25, Textron dismissed Mahle from its

cross-complaint without prejudice. On 7/15/25, The Club dismissed Mahle from its First Amended Cross-Complaint without prejudice. On 7/23/25, Plaintiff dismissed Mahle from his First Amended Complaint without prejudice. On 9/10/25, Plaintiff filed a Doe amendment naming Mahle as Doe 27 in his First Amended Complaint.

On 4/17/26, the Court overruled Mahle's demurrer to the First Amended Complaint. In its ruling on the demurrer, the Court noted that:

"the Complaint and the First Amended Complaint repeatedly allege that the incident resulted from "the front right wheel of the golf cart suddenly and without any warning lock[ing] up, which then caused the rear-end of the golf cart to swerve left in a clockwise direction, which then caused plaintiff to be ejected from the driver's side of the golf cart." (emphasis added) (See Complaint ¶¶14,17; First Amended Complaint ¶¶18, 19, 21-23, 28, 34, 49). However, Plaintiff's opposition to the demurrer claims that the incident occurred when "one of the rear wheels locked without warning, causing the cart to violently rotate, eject Plaintiff...." (emphasis added) (See Opposition, p.5:14-16, p.7:15-17). In the reply, Mehle claims that this is the first time Plaintiff has claimed that the action arises from a mechanical failure relating to the rear wheel of the golf cart. (See Reply, p.2:3-18).

If Plaintiff intends to now base his claims on these new facts, it would seem prudent that he seek leave to amend his pleading by filing a properly noticed motion for leave to amend which would allow Mahle Letrika USA, as well as the other defendants, to address the propriety of adding such allegations at this point in the proceedings."

(See 4/17/26 Minute Order, pp.4-5).

On 5/5/26, Mahle answered the First Amended Complaint. On 5/21/26, Plaintiff filed and served the instant motion for leave to file a Second Amended Complaint. Mahle has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

Leave to amend is to be liberally granted so that matters may be resolved on their merits. CCP 473(a)(2); Nestle (1972) 6 C3d 920; Hirs (1981) 118 CA3d 486, 488-489; Mabie (1998) 61 CA4th 581, 596. If a motion to amend is timely and granting same will not prejudice the opposing party, it is error to deny leave to amend and where the refusal results in a party being deprived of the right to assert a meritorious cause of action, it is an abuse of discretion. California Casualty General Insurance Co. (1985) 173 CA3d 274, 278.

A motion for leave to amend must be accompanied by a declaration that specifies: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC 3.1324(b).

Here, the declaration of Plaintiff's attorney, Ronald M. Binder, submitted in support of the motion fails to meet the foregoing requirements. The declaration merely sets forth attorney Binder's qualifications; identifies the attached exhibits (e.g. complaint, First Amended Complaint, proposed Second Amended Complaint); indicates that written discovery has been conducted, some depositions have been taken and more will take place in the near future; and indicates that a physical inspection of the golf cart has been completed. (See Binder Decl. ¶¶1-6). The declaration concludes that since the trial is not scheduled until 6/1/27, allowing the amendment will not prejudice any other party. (Id. ¶7).

Contrary to the assertion in the reply, the opposition does not argue that the motion should be denied because Plaintiff "did not provide a redline showing additions, deletions, and alterations between the first and second amended complaints." (See Reply, p.9:7-9). With regard to Plaintiff's failure to comply with CRC 3.1324, the opposition focuses on the deficiencies the attorney Binder's declaration. (See Opposition, p.8:16-21). It is not until the reply that attorney Binder includes a declaration pursuant to the requirements of CRC 3.1324(b). (See Reply, p.5:17-p.8:6 and Ex.A thereto). The foregoing is not a mere technical defect as the Binder declaration filed with

the reply provides the substantive basis for the motion depriving the other parties, particularly Mahle, of the opportunity to respond to same in the opposition.

Additionally, contrary to Plaintiff's assertion, with regard to the sham pleading doctrine, Mahle does not rely "nearly exclusively on discovery responses as its source of alleged inconsistencies." (See Reply, p.3:24-25). The opposition points out allegations in the original and First Amended Complaint regarding the right front wheel locking up which are inconsistent with the proposed new allegations in the Second Amended Complaint regarding the rear wheels locking up. (See Opposition, p.3:4-16, p.4:18-20).

CONCLUSION

The motion is denied without prejudice.